

SENATE No. 2208

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing Election Day as a holiday and providing paid voting leave.

PETITION OF:

NAME:

Rebecca L. Rausch

DISTRICT/ADDRESS:

Norfolk, Worcester and Middlesex

SENATE No. 2208

By Ms. Rausch, a petition (accompanied by bill, Senate, No. 2208) of Rebecca L. Rausch for legislation to establish Election Day as a holiday and providing paid voting leave. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2059 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing Election Day as a holiday and providing paid voting leave.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The eighteenth clause of section 7 of chapter 4 of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended, in line 122, by adding the following
3 sentence:- “Legal holiday” shall also include Election Day, the first Tuesday in November in
4 even-numbered years; provided, however, that observance of said holiday shall not apply to
5 public employees whose jobs pertain to the operation and administration of elections.

6 SECTION 2. Chapter 149 of the General Laws, as appearing in the 2022 Official Edition,
7 is hereby amended by striking out section 178 and inserting in place thereof the following
8 section:-

9 Section 178. Paid leave of absence from work for voting.

10 (a) For purposes of this section, the terms "employer" and "employee" shall be defined as
11 in section 1 of chapter 175M.

12 (b) An employee who is eligible to vote shall be entitled, upon request, to take 2 hours of
13 paid leave to be used for the purpose of casting a ballot in any annual or special municipal or
14 state primary or election. An employee may elect to take paid voting leave at any point during
15 the early voting or mail voting period provided by law, or on the date of a primary or election.
16 Employees eligible to observe Election Day as a holiday, as defined in the eighteenth clause of
17 section 7 of chapter 4, shall not be entitled to take additional paid leave pursuant to this
18 paragraph for biennial general elections.

19 (c) It shall be unlawful for any employer to interfere with, restrain, or deny the exercise
20 of, or the attempt to exercise, the right to take paid voting leave under this section as a negative
21 factor in any employment action such as evaluation, promotion, disciplinary action or
22 termination, or otherwise subjecting an employee to discipline for the use of paid voting leave
23 under this section.